

1 ENGROSSED SENATE
2 BILL NO. 1443

By: Daniels of the Senate

3 and

4 Caldwell (Chad) of the
5 House

6 An Act relating to health benefit plans; defining
7 terms; requiring certain health benefit plans to
8 consider certain factors when determining certain
9 payments for certain services; requiring certain
10 payments to be made in certain situations; providing
11 for codification; and providing an effective date.

12 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

13 SECTION 1. NEW LAW A new section of law to be codified
14 in the Oklahoma Statutes as Section 7501 of Title 36, unless there
15 is created a duplication in numbering, reads as follows:

16 A. As used in this act:

17 1. "Anesthesia services" means the same as defined by the
18 prevailing medical coding and billing standards in the professional
19 medical billing community, including the most recent version of the
20 Current Procedural Terminology (CPT) code books, the Medicare Claims
21 Processing Manual, and American Society of Anesthesiologists
22 guidance;

23 2. "Base unit" means the value for each anesthesia code that
24 reflects all activities other than anesthesia time including usual

1 preoperative and postoperative visits, the administration of fluids
2 and blood incident to anesthesia care, and monitoring services;

3 3. "Health benefit plan" means any plan that provides benefits
4 for medical or surgical expenses or disease management incurred as a
5 result of a health condition, accident, or sickness, including an
6 individual, group, blanket, or franchise insurance policy or
7 insurance agreement, a group hospital service contract, or an
8 individual or group evidence of coverage or similar coverage
9 document that is issued by:

- 10 a. an insurance company,
- 11 b. a group hospital service corporation,
- 12 c. a health maintenance organization,
- 13 d. an approved nonprofit health corporation,
- 14 e. a small employer health benefit plan, or
- 15 f. any other health insurance company whose primary
16 purpose is to provide benefits for medical or surgical
17 expenses as a result of a health condition, accident,
18 sickness, or disease.

19 Health benefit plan does not include a plan offered by a contracted
20 entity that covers Medicaid members under the Ensuring Access to
21 Medicaid Act; and

22 4. "Physical status modifiers" means classifications set forth
23 in the American Society of Anesthesiologists (ASA) Physical Status
24 Classification System.

1 B. All health benefit plans shall consider the following
2 factors in determining necessity of services and calculation of
3 benefit payment amounts for anesthesia services:

4 1. The assessment of patient physical status, including the use
5 of physical status modifiers as determined by a participant's
6 treating physician or health care provider; and

7 2. The complexity and urgency of care, as determined by a
8 participant's treating physician or health care provider.

9 C. Physical status modifiers shall be paid according to the
10 corresponding base unit values to the treating physician or health
11 care provider if the patient is ranked in one of the three following
12 categories:

13 1. ASA III: A patient with severe systemic disease. Modifier
14 P3. Base Unit Value 1;

15 2. ASA IV: A patient with severe systemic disease that is a
16 constant threat to life. Modifier P4. Base Unit Value 2; or

17 3. ASA V: A moribund patient who is not expected to survive
18 without the operation. Modifier P5. Base Unit Value 3.

19 SECTION 2. This act shall become effective November 1, 2026.
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1 Passed the Senate the 16th day of March, 2026.

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3 _____
4 Presiding Officer of the Senate

5 Passed the House of Representatives the ____ day of _____,
6 2026.

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8 _____
9 Presiding Officer of the House
10 of Representatives